



UNITED STATES DISTRICT COURT WESTERN DISTRICT OF TENNESSEE

COURT IMPROVEMENT FUND PLAN

Established April 20, 1993

Revised March 2026

The following revisions are incorporated to address audit findings and to further clarify governance, authorization, and administration of the Court Improvement Fund (CIF).

On April 20, 1993, the Court, through Administrative Order 93-1, *In Re: Plan for the Establishment, Administration and Operation of the Court Improvement Fund*, recognized a need to incur certain expenses for the improvement of court operations and for the benefit of the Federal bench and bar in the administration of justice. The Court ordered the establishment of the “Court Improvement Fund” (CIF) and ordered that it be financed from monies collected from attorney admission fees and interest on the Fund balances. The Court appointed the Clerk of Court to serve as Custodian of the CIF.

On May 28, 1998, the Court amended Administrative Order 93-1 authorizing the expansion of the CIF to include financing the operation of a plan for the appointment of counsel for pro se indigent parties in civil cases filed in this District. A separate Pro Bono Expense Fund Account was established at the direction of the Court with monies transferred from the CIF. Funds transferred from the CIF and held in the Pro Bono Expense Fund Account are segregated from the CIF and use of the funds in the Pro Bono Expense Fund Account are governed by *The Plan for Appointment of Counsel for Pro Se Indigent Parties in Civil Cases of the United States District Court for the Western District of Tennessee*.

This Court Improvement Fund Plan sets forth and establishes the policy for the administration of the CIF.

I. Collection of Fees.

Financing for the CIF shall come from fees collected for general and *pro hac vice* attorney admission fees, including any renewal fees that may be required by the Court from time to time. These attorney admission fees are those collected by both the District Court and the Bankruptcy Court for this district. No other source of funding is allowed to be deposited in the CIF account. The Court will establish the fees for general admissions and *pro hac vice* admission via administrative orders.

II. Use of the Court Improvement Fund.

Funds deposited in the CIF are to be used exclusively for the benefit of the Federal bench and bar and to enhance the administration of justice. No funds collected shall be used to supplement the salary of any Court officer or employee or used to pay for goods or services for which appropriations may be legally used.

Funds deposited in the CIF shall not be used for official or personal travel except in the limited circumstances where such travel directly benefits the federal bench and bar and enhances the administration of justice within this District. Any such exception must be specifically approved in accordance with the authorization procedures set forth in this Plan.

The Court shall avoid the unreasonable accumulation of funds within the CIF. For purposes of this Plan, an unreasonable accumulation is defined as maintaining a fund balance significantly in excess of anticipated needs without a reasonable and documented plan for future use consistent with the purposes of the CIF.

Examples of ***appropriate*** uses of the CIF include but are not necessarily limited to the following:

- Attorney admissions expenditures;
- Attorney discipline procedures;
- Periodicals and publications for court libraries;
- Attorney lounge facilities;
- Travel by Court officers or employees to attend bench/bar and other court-related events as a representative of this Court;
- Judicial investiture proceedings;
- Judicial retirement proceedings;
- Judicial portrait costs (see the Court's *Judicial Portrait Policy*, which is incorporated by reference herein as part thereof); and
- Purchase and presentation of non-monetary awards and forms of recognition up to a cost of \$100.00 per item, exclusive of personalized engraving, for employees of the Court and/or employees of federal Court-related agencies and bar associations serving federal practitioners regularly doing business with the Court in recognition of their tenure, contributions to the Bench or Federal Bar or the administration of justice within this District. Examples of such non-monetary forms of recognition might include plaques, certificates, books, desk ornaments or similar items indicating the Court's recognition of the recipient.

Examples of ***prohibited*** uses of the CIF include but are not necessarily limited to the following:

- Printing of local rules; and
- Purchase of office supplies for court use during a government shutdown.

III. Responsibilities of the Custodian.

The Clerk of Court, as Custodian of the CIF, is responsible to:

- Receive fees collected from attorneys for admission to practice before the District Court, either generally or specially (*pro hac vice*), which are designated for deposit into the Fund and to receive similar fees collected by the district's Bankruptcy Court.
- Deposit and maintain fees collected for the CIF in a separate, interest-bearing checking account.
- Issue payment from the CIF account by check requiring the signature of the Clerk as the Fund's Custodian.
- Submit to the Court monthly financial statements that accurately represent the financial condition of the CIF.
- Prepare all reports, if any, necessary for the Internal Revenue Service.

IV. Notice to Attorneys.

The Clerk of Court, as Custodian of the CIF, will cause notice to be given to attorneys petitioning to be admitted to the Bar of this District Court that a portion of all of their admission fees (including both the general admission fee as well as the *pro hac vice* fee), as applicable, including any annual renewal fees, will be deposited in the CIF. For purposes of this section, publication of this Court Improvement Fund Plan through the District Court's public access website <https://www.tnwd.uscourts.gov>, including Administrative Order No. 93-1 and/or any revisions thereto, shall constitute sufficient notice.

V. Independent Audit of the Fund.

An independent audit of the CIF will be conducted at least every two years. The expense incurred in the performance of such an audit shall be paid out of the CIF.

VI. Successor Custodian.

When a successor Custodian is appointed, the outgoing Custodian will prepare and sign the following statements in conjunction with an outside audit, unless waived by the Court:

1. The completion of a Statement of Assets and Fund Balance up to the date of transfer to the successor Custodian.
2. The successor Custodian should execute a receipt for all funds, after being satisfied as to the accuracy of the statements and records provided by the outgoing Custodian.

VII. Authorization and Approval of Expenditures

This section establishes the formal procedures for the review, authorization, and documentation of expenditures from the Court Improvement Fund to ensure accountability, transparency, and compliance with applicable judiciary policies.

Categories of Expenditures

1. **Routine Expenditures.** Routine expenditures are those recurring or minor expenses that are consistent with previously approved categories of CIF use, including but not limited to court-related meetings, committee activities, and non-monetary recognition items.
2. **Non-Routine Expenditures.** Non-routine expenditures are those that are significant, non-recurring, or outside the scope of customary CIF expenditures, including but not limited to large event sponsorships, special ceremonies, or new programmatic initiatives.

Approval Authority

1. **Routine Expenditures.** The Clerk of Court, as Custodian to the CIF, is authorized to approve routine expenditures that:
 - a. Fall within the permissible uses of the CIF as set forth in this Plan; and
 - b. Do not exceed \$1,500 per transaction, unless otherwise modified by order of the Court.All approvals shall be documented in writing, which may include electronic documentation, and maintained as part of the CIF records.
2. **Non-Routine Expenditures.** All non-routine expenditures shall require prior written approval.
 - a. The Clerk of Court shall submit a written request to the Chief Judge that includes:
 - i. A description of the proposed expenditure;
 - ii. The estimated cost; and
 - iii. A justification describing how the expenditure benefits the bench and bar or enhances the administration of justice.

- b. The Chief Judge may:
 - i. Approve the request; or
 - ii. Refer the request to the full Court for consideration and approval.
- c. Approval of non-routine expenditures shall be documented in writing and retained with the supporting documentation for the expenditure.

Documentation and Recordkeeping

- 1. All expenditures shall be supported by adequate documentation demonstrating:
 - a. The purpose of the expenditure;
 - b. The amount and payee;
 - c. Appropriate approvals; and
 - d. How the expenditure benefits the bench and bar of the administration of justice.

The Clerk of Court shall maintain a complete and accurate record of all CIF expenditures in a centralized ledger or approved financial system.

Reporting and Oversight

The Clerk of Court shall provide monthly reports to the Court summarizing CIF expenditures. Such reports shall include sufficient detail to allow for meaningful review and oversight.

VIII. Governance and Responsibilities of the Court.

The Court retains ultimate responsibility for the administration, oversight, and policy direction of the Court Improvement Fund. This includes:

- 1. Approving and amending this Plan;
- 2. Establishing policies governing the use of CIF funds;
- 3. Reviewing financial reports and audit results; and
- 4. Ensuring that expenditures are consistent with applicable judiciary policies and the purposes of the CIF.

The Chief Judge shall exercise oversight authority as provided in this Plan, including review and approval of non-routine expenditures, and may refer matters to the full Court as appropriate.

IX. Dissolution of the Fund.

In the event the Court determines that the Court Improvement Fund should be dissolved, such action shall be authorized by order of the Court. Upon dissolution, all remaining funds shall be distributed in a manner consistent with applicable federal judiciary policies and any governing administrative orders, and in a manner that furthers the purposes for which the CIF was established.

Approved:



Wendy R. Oliver
Clerk of Court

Date: May 15, 2026

Approved by: Administrative Order No. 2026-18